

CALLISON v. ORTIZ

20CV45077

DEFENDANTS' CONTINUED MOTION FOR JUDGMENT ON THE PLEADINGS

This is a breach of contract action relating to the sale of real property. Before the Court is the continued hearing on the defense motion for judgment on the pleadings, now with opposition and reply briefs.

Party Plaintiffs

Counsel for plaintiff requests clarification of this Court's order regarding the Pollock & James dismissal filed on 10/06/21. At the time this paper was filed with the Court, Pollock & James was representing itself in the action. Attorney Jeffrey was *not* representing Pollock & James and had no obvious authority to file anything on behalf of Pollock & James, especially something as material as a dismissal of their claim. (See CRPC 1.2(a) and *Maddox v. City of Costa Mesa* (2011) 193 Cal.App.4th 1098, 1105.) Even though an attorney in the law firm of Pollock & James signed the Request for Dismissal, there is no indication that Attorney James has the authority to speak for the firm in such matters. Pollock & James must file its own dismissal. The dismissal filed 10/06/21 is stricken.

Stating a Claim

The operative pleading describes a *written* agreement in which defendants would pay to plaintiffs the equity received from a sale involving real property, but no description of the lawful object or consideration therefore. Defendants offer via judicial notice that defendant Riordan agreed in 2017 to pay Callison almost \$1M, and perhaps plaintiffs believed that his agreement to pay created an enforceable contract with Ortiz (as home owner). To the extent this lawsuit is an effort to collect on a pre-existing debt from Riordan, defendants are correct that this is a collection matter to be addressed in the Sonoma County proceeding. Either way, it is not clear how P&J or Ortiz are involved at all.

Nevertheless, the new opposition brief presents a basis upon which amendments might cure the defects previously identified. Plaintiff is correct that any lawful benefit conferred upon the promisor, or any prejudice suffered by the promisee as an inducement to the promisor, is good consideration for a promise. (Civil Code §§ 1605, 1607.) The problem is that while the operative pleading is poorly drafted, and done by prior counsel, new counsel provides a cogent explanation of the issue in the opposition papers. If the factual basis in the opposition papers can be appropriately asserted in an amended pleading, the cause of action might survive, but far more detail is required.

Based on the foregoing, the Demurrer is SUSTAINED, WITH 20 days leave to amend.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

KRPAN et al v. SLIGHT et al

20CV44854

**DEFENDANTS' MOTIONS TO COMPEL
INITIAL DISCOVERY RESPONSES**

This is a civil action based on a residential real property transaction allegedly tainted by construction and undisclosed defects. Before the Court are a number of discovery motions, seeking responses from plaintiffs. Although plaintiffs' counsel has provided a myriad of explanations for his clients' delinquency, counsel has not sought a protective order or this Court's intervention to assist in any way. Instead, counsel has made what appear to be empty promises to comply. All of the motions on calendar this day are unopposed.

Motion #1: This motion is actually several motions in one, but under the circumstances this Court will forgive the failure to tender proper motion fees. (See Govt. Code §70617.) This is a refiling of the motion previously filed with a defective notice. Although plaintiffs filed opposition to *that* motion, they did not oppose the present one. The present motion was filed on 11/01/21 by the "Premier" realtor defendants, seeking verified responses to form interrogatories, special interrogatories and RPDs. The discovery was served on 05/25/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Germain Decl. Paras 4-13.) The motion to compel substantive, verified, objection-free responses, as well as the actual production of the requested documents, is GRANTED. Plaintiffs shall comply within 10 days, and shall forthwith reimburse moving parties the sum of \$510.00 (two hours at \$225 per hour + filing fee) as a discovery sanction. (See CRC 3.1348(a).)

Motion #2: This motion was filed on 11/12/21 by the "Wildwood" realtor defendants, seeking verified responses and documents responsive to an Request for Production of Documents. The discovery was served on plaintiffs on 06/08/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Anthony Decl Paras 2-7.) The motion to compel both a substantive, verified, objection-free response, as well as the actual production of the requested documents, is GRANTED. Plaintiffs shall comply within 10 days, and shall forthwith reimburse moving parties the sum of \$510.00 (two hours at \$225 per hour + filing fee) as a discovery sanction. (See CRC 3.1348(a).)

Motion #3: This motion was filed on 11/12/21 by the "Wildwood" realtor defendants, seeking an order deeming admitted all matters contained in their Requests for Admission. The RFAs were served on plaintiffs on 06/08/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Anthony Decl Paras 2-7.) This Court has reviewed the twenty-three (23) matters to admit, and confirms that each is a proper subject of inquiry in this case. As such, the motion to deem those twenty-